



AMENDED ORDER
Order under Section 69
Residential Tenancies Act, 2006
And Section 21.1 of the Statutory Powers Procedure Act

Citation: Shakori v Frolov, 2026 ONLTB 2201

Date: 2026-01-07

Date Amended: 2026-01-22

File Number: LTB-L-094216-25-AM

In the matter of: GRND LVL, 81 VANEVERY ST
ETOBICOKE ON M8V1Y5

Between: Sadaf Shakori Landlord

And

SVETLANA TERN Tenant
DMITRI DAVID FROLOV

AMENDED ORDER

This order is amended to correct a clerical issue. The amended portion of the order shall be in bold and underlined for ease of reference.

Sadaf Shakori (the 'Landlord') applied for an order to terminate the tenancy and evict SVETLANA TERN and DMITRI DAVID FROLOV (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 18, 2025.

The Landlord's Representative, David Myers, the Landlord, and the second-named Tenant attended the hearing.

When the capitalized word "Tenant" is used in this order, it refers to all persons identified as a Tenant at the top of the order.

Determinations:

Preliminary Issue: Svetlana Tern's Status

1. The Tenant had made submissions that Svetlana Tern (ST) should be removed from the application since the Tenant believes that she is not a "tenant" at this rental unit.

2. However, this submission was not considered because the issue was resolved in order LTB-L-019132-25, issued on May 26, 2025. In paragraphs 55 to 58 of the Determinations in that order, the Board Member determined that ST was legally considered a tenant in a joint tenancy agreement as of October 23, 2024.
3. Furthermore, sections 47.1, 47.2, 47.3 and 47.4 of the *Residential Tenancies Act*, 2006 (the 'Act') outlines the conditions in which an interest in a joint tenancy may be terminated. No notice of termination served accordance to those provisions was put before me at any time.
4. The only other way a tenant may divest their interest in an ongoing joint tenancy is on the consent of all parties. It is clear throughout the hearing that the Landlord had not consented to removing ST as a tenant in the tenancy.
5. I also note that ST was aware of the hearing both on its originally scheduled date of December 9, 2025, and the hearing date, December 18, 2025. ST could have attended the hearing to make submissions regarding being named a party to the application but chose not to attend.
6. Therefore, the request to remove Svetlana Tern from the application is denied.

Preliminary Issue: Request to Adjourn

7. The Tenant sought a request to adjourn because their legal counsel was unable to participate in the hearing due to a scheduling conflict.
8. The Tenant's legal representative, Mehran Bagheri, was not present at the hearing. Although Mr. Bagheri, in his correspondence with opposing counsel, stated that he would send an agent in his place to request an adjournment, no one acting as an agent for Mr. Bagheri attended the hearing.
9. The hearing was originally scheduled for December 9, 2025, however, due to my own medical issues, the hearing was delayed by an additional 9 days.
10. I noted that Mr. Bagheri was going to request to adjourn the December 9, 2025, hearing because he had just recently been retained, meaning he in fact had an additional 9 days to prepare.
11. The Landlord opposed the adjournment because they believed that any adjournment would be financially prejudicial since the Landlord had claimed that the Tenant was currently over \$40,000.00 in arrears and with rent accruing at \$1,000.00/week. Therefore, the jurisdictional limit of the LTB (\$50,000.00) would be reached and exceeded by the next hearing. The Landlord also noted that the Tenant had breached the requirement to pay their new rent on an ongoing basis as required in an interim order related to the now-withdrawn L1 application (LTB-L-050803-25-IN, issued September 18, 2025).
12. Pursuant to section 10 of the *Statutory Powers Procedure Act* (the 'SPPA') a party may have representation. However, the Divisional Court recently confirmed in [*Bourgoin v. Schneider*](#), 2025 ONSC 6735 that "There is no absolute right to legal representation at a hearing before the LTB. . ." Further, many parties are self-represented at the Board. The

Board's processes are designed to support self represented parties and resources, including Tenant Duty Counsel, are available for self represented tenants.

13. I am satisfied that Mr. Frolov is capable of presenting the Tenant's case. I also find that the Landlord would experience financial prejudice if this matter gets delayed again given the significant arrears and the Tenants' refusal to comply with the Board's interim order requiring payment of the new rent as it comes due.

14. Therefore, the Tenant's request to adjourn is denied.

Preliminary Issue: Validity of the N4 Notice Service

15. For the purpose of context, it should be noted that I presided over LTB-L-050803-25 on October 29, 2025, which was another rent arrears application filed by the same Landlord. That application was dismissed because the Notice to End Tenancy Early for Non-payment of Rent (N4 Notice) did not reflect a payment that had been made the day prior to the service of the notice (service by email). As a result, the amount to void the N4 notice was incorrect by \$625.00. For that reason, the N4 was deemed to be invalid because the information was incorrect. At the hearing for LTB-L-050803-25, the Landlord was informed that he could either proceed with an order under section 87 of the Act (order for arrears only) or could withdraw their application, serve a new N4 notice, and file a new application. The Landlord chose to file a new application. It should also be noted that in the interest of having all matters heard expeditiously, both parties agreed that I remain seized of any new applications that came before the LTB.

16. During the last few minutes of the hearing of LTB-L-050803-25, the Landlord served the Tenant a new N4 notice by email. Both receipt of the email and the accompanying attachment was acknowledged by the Tenant during these moments before me on October 29, 2025.

17. The Tenant put forward a motion to have the N4 served to them on October 29, 2025, deemed invalid because it was served to the Tenant by email. The Tenant submitted that service by email was not an approved form of service. The Tenant also stated that since the notice was not served in accordance with the Act, he refused to open the email.

18. Pursuant to section 191(1)(g) of the Act and Rule 3.1(g) of the LTB- Rules of Procedure, service by email is permitted if the parties, in writing, have consented to the service. It is also true that there was no written consent between the parties for email service. However, Rule 3.4 states that a party may ask the LTB to permit an alternative method of service. The Landlord's Representative stated that he was emailing the Tenant the new N4 on October 29, 2025, before me. At that hearing I asked the Tenant if he received the email. He responded in the affirmative. He did not say that he would not accept it at that time.

19. Furthermore, pursuant to section 191(2) of the Act, a notice or document that is not given in accordance with this section shall be deemed to have been validly given if it is proven that its contents came to the attention of the person for whom it was intended within the required time period.

20. The Tenant acknowledged the receipt of the email containing the N4 notice at the hearing of LTB-L-050803-25 on October 29, 2025, and again having received it by email on

October 29th at the December 18, 2025, hearing. Therefore, I am satisfied that the email with the attached N4 notice came to the attention of the Tenant on October 29, 2025. It is not required that the Tenant “opened” the email for it to have been validly served.

21. For that reason, I am satisfied that the service of the notice by email did not prejudice the Tenant, and the Tenant was clearly aware of the notice and application. Therefore, the motion to find that the notice to be invalid by reasons of service is denied.

Preliminary Issue: Validity of the N4 Notice

22. The Tenant submitted that the arrears claimed in the N4 were incorrect. As a result, the amount to void the notice was also incorrect, making it defective.
23. The N4 declared that from December 22, 2024, until November 1, 2025, the Tenant was charged \$45,000.00 in rent and that the Tenant had paid \$10,000.00.
24. Neither the rent charged from December 22, 2024 until November 1, 2025, nor the amount paid by the Tenant during this time frame was contested at the hearing.
25. However, the Tenant testified that he had paid the following amounts from October 19, 2024, until December 16, 2024:
 - a) \$1,000.03 on Oct. 19, 2024
 - b) \$1,001.00 on November 10, 2024,
 - c) \$1,000.01 on December 1, 2024,
 - d) \$1,000.02 on December 8, 2024
 - e) \$1,000.30 on December 16, 2024
26. As a result, a credit of \$1.42 was left unaccounted for as of December 22, 2024.
27. As a result, the N4 notice indicates that the Tenant must pay \$35,000.00 to void the notice by, whereas the actual amount owing on the date the N4 notice was served was \$34,998.58.
28. The Landlord confirmed the oversight at the hearing, however stated that the \$1.42, compared to the \$35,000.00 claimed owed on the N4 notice was so minimal that it would qualify under the doctrine of *de minimis*.
29. It is also uncontested that the Tenant made no payments at all to the Landlord by November 5, 2025, the termination date on the N4 notice.
30. Pursuant to section 59(2) of the Act, a notice to terminate based on rent arrears shall set out the amount of rent due and shall specify that the tenant may avoid the termination of the tenancy by paying, on or before the termination date specified in the notice, the rent due as set out in the notice and any additional rent that has become due under the tenancy agreement as at the date of payment by the tenant.
31. The argument being put forward by the Tenant is that he refused to pay any of the arrears claimed in the N4 notice because the actual amount owing was \$34,998.58, not \$35,000.00. According to the Tenant, as a result of this 0.0004% discrepancy, the notice should be deemed invalid.

32. Section 212 of the Act states:

(1) Substantial compliance with this Act respecting the contents of forms, notices or documents is sufficient.

(2) For greater certainty, an error in the contents of a form, notice or document still constitutes substantial compliance with this Act, as long as the error does not significantly prejudice a party's ability to participate in a proceeding under this Act.

33. While the N4 notices does contain an error because it claims that an additional \$1.42 is owing, I am satisfied that an error of 0.0004% is so negligible that it would be unreasonable to find that the N4 notice is invalid on this basis. There is no evidence that the Tenant suffered any prejudice as a result of this minor error, never mind the "significant prejudice" referred to in subsection 212(2). What was unreasonable was for the Tenant to refuse to pay the rent arrears owing in these circumstances. The Tenant was aware that they owed \$34,998.58 to the Landlord yet made no payments.

34. For this reason, I find the N4 notice substantially complies with the Act's requirements and the Tenant's motion is dismissed.

Merits of Application

35. As of the hearing date, the Tenant was still in possession of the rental unit.

36. The lawful rent is \$1,000.00. It is due on the 1st day of each week.

37. Based on the Weekly rent, the daily rent/compensation is \$142.47. This amount is calculated as follows: $\$1,000.00 \times 52$, divided by 365 days.

38. The Tenant has paid \$626.42 to the Landlord since the application was filed. This includes the \$1.42 not considered on the N4 notice.

39. The rent arrears owing to December 20, 2025 are \$41,373.58.

40. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

41. There is no last month's rent deposit.

Eviction Relief

42. Sections 83(1) (2) and (3) of the Act states:

83(1) Upon an application for an order evicting a tenant, the Board may, despite any other provision of this Act or the tenancy agreement,

- a) Refuse to grant the application unless satisfied, having regard to all the circumstances, that it would be unfair to refuse; or
- b) Order that the enforcement of the eviction order be postponed for a period of time.

83(2) If a hearing is held, the Board shall not grant the application unless it has reviewed the circumstances and considered whether or not it should exercise its powers under subsection (1)

83(3) Without restricting the generality of subsection (1), the Board shall refuse to grant the application where satisfied that:

- a) the landlord is in serious breach of the landlord's responsibilities under this Act or of any material covenant in the tenancy agreement.
- b) the reason for the application being brought is that the tenant has complained to a governmental authority of the landlord's violation of a law dealing with health, safety, housing or maintenance standards.
- c) the reason for the application being brought is that the tenant has attempted to secure or enforce his or her legal rights;

43. It is uncontested that as of November 28, 2025, the Tenant is not living in the rental unit and is currently living in another unit paying a monthly rent. However, the Tenant has stated that he wants to stay in possession of the rental unit.
44. The Tenant testified that he felt intimidated by the Landlord's actions, including an attempt to garner help via online chats to physically intimidate the Tenant. The Tenant presented a script that he transcribed, but did not provide any screenshots or photo evidence of the online conversation. The Landlord denied the accusation.
45. The Tenant stated that other people were aware of the hearing because of the Landlord's online attempts to intimidate the Tenant. On cross-examination, the Tenant was presented photos of the exterior of the Tenant's rental unit (DOC-6905905 pg. 570-580), which showed documents and information regarding all of the ongoing court and tribunal cases (both civil and criminal). The Tenant did not contest this evidence when presented to him, and for that reason, I must accept it as truth.
46. Based on the evidence presented to me, I am not satisfied that the Landlord attempted to intimidate the Tenant by searching for help online for the purpose of intimidating the Tenant.
47. I did not find the Tenant's self-transcribed conversations to be credible. The Tenant has proven himself very capable of providing electronic evidence during this proceeding and I find it highly unlikely that the Tenant could not have provided a screen shot of a conversation that he had time to allegedly transcribe. The Tenant submitted over 2000 pages of documents, and several mp3, mp4, and m4a digital files. Someone who is clearly adept at using computers (including Artificial Intelligence) could figure out how to use the "Print Screen" button, or "Windows Key + Shift + S" to take a screen shot of these alleged conversations. If the alleged chatroom messages were viewed on a smartphone, one can literally ask the phone (either through Siri, Gemini or Bixby) to take a screen shot.
48. Furthermore, the Tenant did not have a witness present to provide testimony that there was an attempt to elicit the services of some "local muscle".
49. I am more persuaded by the Landlord's evidence that even if people outside of the parties involved had knowledge of any legal proceedings between the parties, that they just as

likely could have learned it from the Tenant's physical public posting of multiple court documents.

50. I do not find the Tenant's evidence credible that the Landlord has attempted to intimidate the Tenant to the degree of a breach of a material covenant. Therefore, it will not be given further consideration.
51. The Tenant stated that as of November 28, 2025, which was the last day the Tenant stayed at the rental unit, the utilities, such as power and hydro, were still being provided. Therefore, I cannot find that there is any serious breach of the Landlord's responsibilities.
52. The Tenant also presented evidence of having terminal illness. Although the Tenant has stated that his illness would prevent him from moving, the Tenant already has a new rental unit. The Tenant has effectively already moved, save for a few items. Therefore, there is no reason to consider providing the Tenant with additional time to vacate due to his chronic illness.
53. Although the Tenant testified that he wanted to stay in the unit, given that he has already entered into another monthly lease and moved most of his belongings, I see no compelling reason to grant relief from eviction given the significant arrears owing to the Landlord.
54. Having considered all the disclosed circumstances in accordance with section 83(2) of the Act, I find it would be unfair to grant any relief from eviction.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated unless the Tenant voids this order.
2. **The Tenant may void this order and continue the tenancy by paying to the Landlord or to the LTB in trust:**
 - \$44,559.58 if the payment is made on or before January 10, 2026. See Schedule 1 for the calculation of the amount owing.

OR

 - \$45,559.58 if the payment is made on or before January 17, 2026. See Schedule 1 for the calculation of the amount owing.

OR

 - \$46,559.58 if the payment is made on or before January 18, 2026. See Schedule 1 for the calculation of the amount owing.
3. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after January 18, 2026 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.

4. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before January 18, 2026.**
5. If the Tenant does not void the order, the Tenant shall pay to the Landlord \$41,271.93. This amount includes rent arrears owing up to the date of the hearing and the cost of filing the application. See Schedule 1 for the calculation of the amount owing.
6. The Tenant shall also pay the Landlord compensation of \$142.47 per day for the use of the unit starting December 19, 2025 until the date the Tenant moves out of the unit.
7. If the Tenant does not pay the Landlord the full amount owing on or before January 18, 2026, the Tenant will start to owe interest. This will be simple interest calculated from January 19, 2026 at 4.00% annually on the balance outstanding.
8. If the unit is not vacated on or before January 18, 2026, then starting January 19, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
9. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after January 19, 2026.

January 7, 2026**Date Issued**_____
Robert Brown

Member, Landlord and Tenant Board

January 22, 2026**Date Amended**

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on July 19, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 10, 2026

Rent Owing To January 10, 2026	\$45,000.00
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$626.42
Total the Tenant must pay to continue the tenancy	\$44,559.58

B. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 17, 2026

Rent Owing To January 17, 2026	\$46,000.00
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$626.42
Total the Tenant must pay to continue the tenancy	\$45,559.58

C. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 18, 2026

Rent Owing To January 24, 2026	\$47,000.00
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$626.42
Total the Tenant must pay to continue the tenancy	\$46,559.58

D. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$41,712.35
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$626.42
Total amount owing to the Landlord	\$41,271.93
Plus daily compensation owing for each day of occupation starting December 19, 2025	\$142.47 (per day)
**Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	